

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005885

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: MERSHAD REZAYATI

NATURE OF PROCEEDINGS: MOTION – OTHER: TO VACATE THE CONDITIONAL
DISMISSAL AND FOR ENTRY OF JUDGMENT

RULING

Plaintiff American Express National Bank moves to vacate this Court's conditional dismissal and for entry of judgment pursuant to Code of Civil Procedure section 664.6, and the parties' stipulation. On June 26, 2025, a stipulation and order was filed with the Court in which the parties agreed to a payment plan, and also agreed that if Defendant Rezayati failed to comply with the plan, the Court could enter judgment for the outstanding amount.

Plaintiff submitted a declaration of counsel averring that Defendant Rezayati has not made a payment since June 10, 2025 and is in default of the agreement. Notice of this motion was served on Defendant Rezayati and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).)

The motion to vacate the conditional dismissal and for entry of judgment is granted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnZEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006388

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JUAN ALBERTO PAREDES
GUERRA

vs.

DEFENDANT: PAUL VINCENT KLAUS
LELLOUCHE, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR
PROGRAM

RULING

Defendants filed a motion to compel further responses to Form Interrogatory Nos. 8.5 and 8.6 and Special Interrogatories and Requests for Production of Documents on the grounds that Plaintiff failed to identify the dates he missed work and lost income. Plaintiffs assert in response that they have served supplemental responses and supplemental discovery.

Defendants' Separate Statement only references Form Interrogatory Nos. 8.5 and 8.6 which ask for the date Plaintiff returned to work at each place of employment following the injury, and the dates he did not work and for which he lost income. Plaintiff's supplemental responses to these interrogatories state he does not know the exact date he returned to work, and that he missed various dates from 5/29/2023 to the present. There is no indication to date that the supplemental responses have been verified. Plaintiff also provided a sworn declaration stating that he made a good faith effort to respond but no longer has in his possession the dates he returned to work, but that he has contacted his employer.

Responses to interrogatories must be "as complete and straightforward as the information reasonably available to the responding party permits." (Code of Civ. Proc. §2030.220, subd. (a).) If a party is unable to secure details, he should set forth the efforts made to secure the information. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782.)

In this case, the Court finds that while the Declaration provided sufficient information to supplement those responses, that information should be incorporated into the responses. No later than by September 25, 2026, Plaintiff shall amend the responses to include the information stated in his declaration, that he no longer has the dates in his possession, but he has contacted his employers to obtain the information. The further responses should be verified.